FILED
AUG 07 2026
FRESNO COUNTY CLERK
By _____ DEPUTY

RESOLUTION NO. 2854

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF FOWLER APPROVING THE CITY OF FOWLER PUBLIC SAFETY, STREET AND INFRASTRUCTURE MAINTENANCE, AND ESSENTIAL CITY SERVICES TRANSACTIONS AND USE TAX ORDINANCE; CALLING AND ORDERING THE SUBMISSION OF THE ORDINANCE TO THE QUALIFIED ELECTORS OF THE CITY OF FOWLER AT A GENERAL MUNICIPAL ELECTION TO BE HELD ON NOVEMBER 3, 2026; REQUESTING THE FRESNO COUNTY BOARD OF SUPERVISORS TO CONSOLIDATE THE GENERAL MUNICIPAL ELECTION WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE; REQUESTING THE FRESNO COUNTY REGISTRAR OF VOTERS TO CONDUCT THE ELECTION; AND DIRECTING RELATED ACTIONS.

WHEREAS, The City of Fowler is committed to maintaining a high level of public safety, preserving and improving its streets and infrastructure, maintaining parks and public facilities, and continuing to provide quality municipal services for residents and businesses; and

WHEREAS, Like many California cities, the City of Fowler continues to experience increasing costs associated with police, fire protection, emergency response, street maintenance, aging infrastructure, parks, public buildings, fleet replacement, technology, regulatory compliance, and other essential municipal services; and

WHEREAS, Existing revenues are insufficient to fully address the City's long-term infrastructure needs while maintaining current service levels without reducing other municipal programs; and

WHEREAS, The expiration of Fresno County's one-half cent Measure C transportation sales tax in June 2027 is expected to eliminate a significant local revenue source for the City of Fowler. Between 2006 and 2025, the city received $4,489,761.03 in Measure C revenues to support street maintenance, ADA improvements, and transportation-related projects, while also providing the local match required to secure additional state and federal grant funding; and

WHEREAS, The City Council finds that maintaining safe neighborhoods, repairing local streets, preserving public infrastructure, supporting emergency response capabilities, and protecting essential City services are matters of significant local concern; and

WHEREAS, Pursuant to Article XIII C of the California Constitution, the California Elections Code, and the Transactions and Use Tax Law (Part 1.6, Division 2, of the California Revenue and Taxation Code, commencing with Section 7251), the City Council may submit to the voters an ordinance imposing a local transactions and use tax; and

WHEREAS, Revenue and Taxation Code Section 7285.9 requires that any ballot measure/ordinance establishing or increasing a transactions and use tax must be approved by a 2/3 vote of all members of the City Council and by a majority vote of the qualified voters of the City voting on the ballot measure; and

WHEREAS, The proposed tax is intended to provide a stable, locally controlled source of revenue that shall remain in the City of Fowler and may not be taken by the State for other purposes except as provided by law.

NOW, THEREFORE, BE IT RESOLVED by the City Council of the City of Fowler that:

Section 1. Findings.

The foregoing recitals are true and correct and are incorporated herein by this reference.

Section 2. Approval and Submission of Ordinance.

Pursuant to Revenue and Taxation Code Section 7285.9, the City Council approves the attached "City of Fowler Public Safety, Street and Infrastructure Maintenance, and Essential City Services Transactions and Use Tax Ordinance", which is attached as Exhibit A and orders that it be submitted to the qualified voters of the City.

Section 3. Election.

A General Municipal Election shall be held on Tuesday, November 3, 2026, for the purpose of submitting the Ordinance to the qualified electors of the City.

Section 4. Ballot Measure.

The City Clerk is directed to submit the Ordinance and ballot question ("Measure") in substantially the following form:

"To fund general City services, such as local police, fire protection, emergency response, repair streets and roads, improve aging infrastructure, maintain parks and public facilities, and other general City services, shall the measure, establishing a one-half cent (½¢) transactions and use tax providing approximately $300,000.00 annually until ended by voters and public reporting consistent with State law as required, be adopted?"

YES _____
NO _____

The complete text of the Measure shall be printed in the Fresno County Voter Information Guide and be available for public inspection in the City Clerk's office.

Section 5. Voter Approval Requirement.

The vote requirement for the Measure to pass is a majority (50% + 1) of the votes cast.

Section 6. Consolidation.

The City Council requests that the Fresno County Board of Supervisors consolidate the General Municipal Election with the statewide election to be conducted on November 3, 2026. The election will be held and conducted in accordance with the provisions of law regulating the elections, including, but not limited to, Elections Code Section 10418. The City of Fowler recognizes that additional costs will be incurred by the County of Fresno by reason of this consolidation and agrees to reimburse the County of Fresno for any costs. The City Clerk shall file a certified copy of this Resolution with the Fresno County Board of Supervisors and San Fresno County Elections Department.

Section 7. Election Services.

The Fresno County Registrar of Voters is requested to conduct the election and perform all services necessary for its administration.

Section 8. Arguments.

A. The City Council authorizes the filing of primary arguments concerning the Measure as authorized by Article 4, Chapter 3, Division 9 of the California Elections Code. Such arguments shall not exceed 300 words and shall be filed with the Fresno County Clerk/Registrar of Voters, signed, with the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers who is the author of the argument. The arguments shall be accompanied by forms as provided by the Fresno County Clerk/Registrar of Voters.

B. The City Council authorizes the filing of rebuttal arguments pursuant to Elections Code Section 9285 as follows:

(1) Pursuant to Section 9285 of the Elections Code of the State of California, when the Fresno County Clerk/Registrar of Voters has selected the arguments in favor and against the Measure (not exceeding 300 words each) which will be printed and distributed to the voters, the Fresno County Clerk/Registrar of Voters shall send a copy of an argument in favor of the Measure to the authors of any argument against the Measure and a copy of an argument against the Measure to the authors of any argument in favor of the Measure immediately upon receiving the arguments.

(2) The author or a majority of the authors of an argument relating to the Measure may prepare and submit a rebuttal argument not exceeding 250 words or may authorize in writing any other person or persons to prepare, submit, or sign the rebuttal argument.

(3) A rebuttal argument may not be signed by more than five authors.

(4) The rebuttal arguments shall be filed with the Fresno County Clerk/Registrar of Voters, signed, with the printed name(s) and signature(s) of the author(s) submitting it, or if submitted on behalf of an organization, the name of the organization, and the printed name and signature of at least one of its principal officers. The rebuttal arguments shall be accompanied by forms provided by the Fresno County Clerk/Registrar of Voters.

(5) Rebuttal arguments shall be printed in the same manner as the primary arguments. Each rebuttal argument shall immediately follow the primary argument which it seeks to rebut.

(6) All previous resolutions providing for the filing of rebuttal arguments for City measures are repealed, but only to the extent such resolutions conflict with this Resolution.

(7) The provisions of this Section 7(B) shall apply only to the election to be held on November 3, 2026, and shall then be repealed.

C. Such primary arguments and rebuttal arguments shall be filed with the Fresno County Clerk/Registrar of Voters no later than the date and time fixed by the Fresno County Clerk/Registrar of Voters.

Section 9. Impartial Analysis.

The City Attorney is directed to prepare an impartial analysis of the Measure consistent with Elections Code Section 9280. The impartial analysis shall be filed with the Fresno County Clerk/Registrar of Voters by the date and time established by that office.

Section 10. Fiscal Impact Statement.

The City Manager, or designee, shall prepare any fiscal analysis or other election materials required by law.

Section 11. Letter Designation for Measure.

The City Council hereby requests the Fresno County Registrar of Voters/Election Official assign the letter designation "F' to this measure for the purposes of identification on the ballot, if such letter is available; and in the event that the Letter "F" is not available, the Fresno County Registrar of Voters/Election Official assign the next available letter designation in accordance with applicable law.

Section 12. Measure Synopsis.

The following constitutes the synopsis of the measure to be voted on for purposes of meeting the publication requirements for the California Election Code §12111:

MEASURE TO BE VOTED ON

NOTICE IS HEREBY GIVEN THAT THE FOLLOWING MEASURE IS TO BE VOTED ON AT THE GENERAL MUNICIPAL ELECTION TO BE HELD IN THE CITY OF FOWLER, ON TUESDAY, THE 3rd OF NOVEMBER 2026.

Ordinance No. 2026-07, known as the City of Fowler Public Safety, Street and Infrastructure Maintenance, and Essential City Services Transactions and Use Tax Ordinance, would establish a one-half-cent-per-dollar (0.5%) local transactions and use tax.

Fresno County's existing one-half-cent transportation sales tax, Measure C, is scheduled to expire in June 2027. The proposed measure would provide Fowler with a stable, locally controlled revenue source to help offset the loss of Measure C funding and address community needs. Revenue from the measure could support public safety and essential City services; maintain water, sewer, parks, and other public infrastructure; repair deteriorating streets; fund transportation improvements; and provide safer routes to schools.

DATED: AUGUST 6, 2026
CITY CLERK
CITY OF FOWLER

Section 13. Corrections and Amendments to documents.

The City Council authorizes the City Manager, or designee, to execute all documents and agreements, and to take any and all actions necessary and appropriate to implement this Resolution, including making substantive corrections, revisions, or modifications to the Resolution, its exhibits (including the Ordinance), and related documents as may be required to carry out the intent of the City Council, comply with applicable law, or satisfy the requirements of the California Department of Tax and Fee Administration, the Fresno County Registrar of Voters, or any other governmental agency, provided that such corrections do not alter the intent of the City Council, the Resolution and its attachments.

Section 14. Severability.

If any section, subsection, sentence, clause, phrase, or portion of this Resolution or the Ordinance is held invalid, the remaining provisions shall remain in full force and effect.

Section 15. Effective Date.

This Resolution shall take effect immediately upon its adoption.

Section 16. Signing Authority.

The Mayor is hereby authorized to execute this Resolution and all related documents. In the event the Mayor is unavailable or unable to execute any such document, the Mayor Pro Tempore is authorized to execute the document on the Mayor's behalf. If both the Mayor and Mayor Pro Tempore are unavailable, the City Council hereby authorizes any Councilmember designated by the City Council to execute such documents on behalf of the City.

PASSED, APPROVED AND ADOPTED this 6th day of August 2026, at a special meeting of the Fowler City Council by the following vote:

AYES: Mejia, Gill, Kazarian, and Parra
NOES:
ABSTAIN:
ABSENT:

APPROVED:

_____
Juan Mejia, Mayor or Designee

ATTEST:

_____
Angela Vasquez, City Clerk

APPROVED AS TO FORM:

By _____

ROY C. SANTOS, City Attorney
Burke, Williams & Sorensen, LLP